

File No.: EXP202314066

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on September 13, 2023, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On September 13, 2023, a complaint was received by this Agency presented by A.A.A. (hereinafter, the complainant) against CORAZÓN CONTENTO S.L. (hereinafter, the respondent) for not having adequately addressed her right of access to her medical history.

The complainant underwent surgery. She contacted, "(...) first, the staff of the hospital where she was operated (Hospital Viamed Virgen de la Paloma), who informed her that her medical history was not held by them and that it was with Clínica Dorsia, since the relationship between them was merely commercial, as the hospital was limited to renting a surgical room to Clínica Dorsia to carry out the complainant's surgical intervention. For its part, B.B.B. informed us that it did not keep the medical histories of its patients and that it was the hospital or Clínica Dorsia itself that should keep it."

The complainant states that by email dated April 25, 2023, addressed to concursocorazoncontento@gmail.com, she requested access to a complete copy of her medical history from the insolvency administrator of the clinic that provided her with healthcare.

Due to the lack of news, she reiterated her request through various emails and phone calls, having received as the only response an email dated July 4, 2023, where she was informed that, since the clinic was in bankruptcy proceedings, no document management computer system was provided, and that the physical documentation was not individualized and that "the services of a document storage company were contracted."

The complainant believes that her request for access has not been effectively addressed.

SECOND: In accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the respondent, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements established in data protection regulations.

There is no record in this Agency that the respondent has submitted any response.

C/ Jorge Juan, 6

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THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for understanding that the complainant's claims were satisfied. Consequently, on December 13, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing process, so that within ten working days it could present the arguments it deemed appropriate.

The respondent indicates that a member of the Insolvency Administration of the company "CORAZÓN CONTENTO, S.L." was appointed by order of the Commercial Court No. 11 of Madrid, attaching a copy of that resolution.

"It is the company "CORAZÓN CONTENTO, S.L." that the complainant A.A.A. has a relationship with, and this company is supposedly the one that should have the requested documents, but in no case does the Insolvency Administration have the responsibility for the company not holding the requested documentation.

At the time this Insolvency Administration was appointed, the company had no employees or any business activity, declaring the very order of declaration of bankruptcy dated in 2020 the company as dissolved."

The respondent indicates that “The Insolvency Administration is not an ordinary legal representative of CORAZÓN CONTENTO, S.L. but its activity is limited to the patrimonial intervention of the insolvent party solely for the purposes provided for in the Insolvency Law, and it cannot be held to the same ordinary liability regime as any corporate Administrator.

The Insolvency Administration confines its work to processing an insolvency procedure, in this case of liquidation, but has not carried out any business activity in this case.”

“(…) The insolvent party at the time the bankruptcy was declared had no employees, no business activity, and no liquidity of any kind. At the time the documentation request was made by A.A.A., the company was in the midst of liquidation, had no employees, no business activity, and no available liquidity to incur any expense. In addition to the above, the response was given to the requester as recorded in the notification received in the following terms:

- Since this Insolvency Administration was appointed, no document management computer system was delivered to it, so no information of that nature is available.
- The physical documentation that appeared without being individualized in the facilities of the insolvent party was stored in a company specialized in document processing to avoid it being abandoned.”

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28001 – Madrid

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3/11

The responding party continues to indicate that “The claimant states that they have sent an email addressed to the address concursocorazoncontento@gmail.com, although, as stated in the publication of the bankruptcy declaration in the Official State Bulletin, the communication address with the Bankruptcy Administration is ***EMAIL.2. Attached as DOCUMENT NUMBER 2 is a copy of the publication in the Official State Bulletin.

This notification to which we are responding is the first knowledge that this Bankruptcy Administration has of the present file.”

“In short, the claim made is completely senseless for the following reasons:

- The Bankruptcy Administration has the exclusive powers marked by the Consolidated Text of the Bankruptcy Law, among which is not the documentary management of the bankrupt company.
- The bankrupt company has not provided this Bankruptcy Administration with any documentation related to A.A.A., so it is difficult to transfer what does not exist, this Bankruptcy Administration being unaware of the reasons for its designation when the company was already in liquidation and without any business activity.
- The business activity of CORAZÓN CONTENTO, S.L. had ceased long before the designation of the Bankruptcy Administration, having no employees or any activity whatsoever, so the Bankruptcy Administration limited itself to depositing the documents that appeared in the premises of the bankrupt company in a document management system to prevent them from falling into the hands of anyone or being abandoned.
- The notification of the initiation of the file to which we are responding is the first news of the present file available.”

FOURTH: After examining the document presented by the responding party, it is forwarded to the claimant, so that, within ten working days, they may formulate the allegations they deem appropriate. The claimant has expressed their disagreement with the allegations presented by the responding party, and points out that they “(…) come to expressly and unequivocally acknowledge, firstly, that there is no computerized document management system and, secondly, that they ceded physical documentation which, evidently and due to the nature and corporate purpose of the company Corazón Contento S.L., contained personal data related to the health of its patients, which is well known to be of special sensitivity.” And, consequently, their clinical history has been ceded to a third party without express consent for this.

The claimant refers to Organic Law 15/1999, of December 13, on the Protection of Personal Data, and to Report 488/2004 of the Spanish Agency for Data Protection, and concludes that “(…) the bankruptcy

administration, as responsible for the custody of such clinical histories, has not only ceded personal health data without the knowledge or authorization of the affected party, but also has the obligation to preserve such clinical documentation under the same terms that Article 17 of Law 41/2002, of November 15, on patient autonomy, imposes on health centers.”

FIFTH: After granting a hearing to the responding party, they reiterate what has already been alleged previously.

“Indeed, this Bankruptcy Administration not only acknowledges but expressly states, as it did in the bankruptcy procedure where the bankruptcy of the company Corazón Contento, S.L. is being addressed, that the company, when this Bankruptcy Administration was appointed, lacked a computerized document management system, or at least this was not made known to the Bankruptcy Administration.

And it is that the Bankruptcy Administration, by its nature of judicial designation, is appointed by the Commercial Court at a certain moment in the life of the companies, and cannot be held responsible for the situation in which they find themselves when the designation is made.

Especially when, while the Bankruptcy Administration was appointed, Corazón Contento, S.L. carried out no commercial activity since when it entered bankruptcy it lacked personnel and any activity whatsoever. A different matter for the purposes of any potential liability of the Bankruptcy Administration is whether it had tolerated the operation of the company without the legally required guarantees, something that in this case, as already stated, did not happen, since no business activity was carried out after the declaration of bankruptcy.

In this order of things, the responsibility for the state of Corazón Contento S.L. must fall, in any case, on the Social Administrator of Corazón Contento, S.L. and in no case on the Bankruptcy Administration.”

The responding party states that the data has not been ceded, but that since a series of physical documents appeared in the rented premises of the entity, these, to prevent them from being abandoned, a service from a specialized company was contracted and “(...) the service consisted of the collection of all physical documentation found in the premises of the bankrupt company, its deposit in sealed boxes and its custody in the facilities of this company.”

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the GDPR,

5/11

LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent for analysis, requiring a response to this Agency within one month and to provide evidence of having given the complainant the appropriate response.

The result of this transfer did not allow for the understanding that the claims of the complainant were satisfied. Consequently, on December 13, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the opening of the present procedure for failure to address a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"When the procedure refers exclusively to the failure to address a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint to be upheld."

C/ Jorge Juan, 6

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28001 – Madrid

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6/11

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers for the purpose of remedying any infringement of the GDPR, including "ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the provisions expressed in Recitals 59 and following of the GDPR.

In accordance with these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to state its reasons in case it does not intend to address such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and plain language.

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, according to the provisions of Article 13 of the

LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to specify the "data or processing activities to which the request refers." The right shall be deemed granted if the controller provides remote access to the data, considering the request to be addressed (although the data subject may request information regarding the aspects provided in Article 15 of the GDPR).

C/ Jorge Juan, 6
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7/11

The exercise of this right may be considered repetitive if it is exercised on more than one occasion within a period of six months, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected party chooses a means different from the one offered that entails a disproportionate cost, which must be borne by the affected party.

Like the other rights of the interested party, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data involved, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the origin of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed will not negatively affect the rights and freedoms of others.

The right of access in relation to the medical history is specifically regulated in Article 18 of Law 41/2002, of November 14, which is the basic regulatory law on Patient Autonomy and Rights and Obligations in the Field of Information and Clinical Documentation (hereinafter LAP), the literal text of which states:

- "1. The patient has the right of access, with the reservations indicated in section 3 of this article, to the documentation of the medical history and to obtain a copy of the data contained therein. The healthcare centers will regulate the procedure that guarantees the observance of these rights.
2. The patient's right of access to the medical history may also be exercised by duly accredited representation.
3. The patient's right of access to the documentation of the medical history cannot be exercised to the detriment of the right of third parties to the confidentiality of the data contained therein collected in the therapeutic interest of the patient, nor to the detriment of the right of the professionals involved in its preparation, who may oppose the right of access based on the confidentiality of their subjective notes.
4. Healthcare centers and individual practitioners will only provide access to the medical history of deceased patients to individuals linked to them, for family reasons or otherwise, unless the deceased expressly prohibited it and this is evidenced. In any case, access by a third party to the medical history motivated by a risk to their health will be limited to the relevant data. Information affecting the privacy of the deceased or the subjective notes of the professionals, or that harms third parties, will not be provided."

C/ Jorge Juan, 6
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28001 – Madrid
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8/11

In this regard, it is important to highlight Article 15 of the LAP, which outlines the minimum content of the medical history:

- "1. The medical history will include the information deemed essential for the truthful and updated

knowledge of the patient's health status. Every patient or user has the right to have a record, in writing or in the most appropriate technical support, of the information obtained in all their care processes, carried out by the health service both in the primary care and specialized care settings.

2. The main purpose of the medical history will be to facilitate healthcare, documenting all those data that, in the medical judgment, allow for the truthful and updated knowledge of the health status.

The minimum content of the medical history will be as follows:

- a) The documentation related to the clinical-statistical sheet.
- b) The admission authorization.
- c) The emergency report.
- d) The anamnesis and physical examination.
- e) The evolution.
- f) The medical orders.
- g) The consultation sheet.
- h) The reports of complementary examinations.
- i) The informed consent.
- j) The anesthesia report.
- k) The operating room report or delivery record.
- l) The pathological anatomy report.
- m) The evolution and planning of nursing care.
- n) The therapeutic application of nursing.
- ñ) The vital signs chart.
- o) The clinical discharge report.

Paragraphs b), c), i), j), k), l), ñ), and o) will only be required in the completion of the medical history when it concerns hospitalization processes or as provided.

3. The completion of the medical history, in aspects related to direct patient care, will be the responsibility of the professionals involved in it.

4. The medical history will be maintained with criteria of unity and integration, in each healthcare institution at a minimum, to facilitate the best and most timely knowledge by the professionals of the data of a specific patient in each care process."

Regarding the preservation of the medical history, Article 17 of the LAP, in its points 1 and 5, states that:

"1. Healthcare centers have the obligation to preserve clinical documentation under conditions that guarantee its proper maintenance and security, even if not...

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28001 – Madrid

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9/11

necessarily in the original format, for the proper assistance to the patient during the appropriate time for each case and, at a minimum, five years counted from the date of discharge of each care process (...)

5. Healthcare professionals who carry out their activity individually are responsible for the management and custody of the care documentation they generate."

V

Conclusion

The rights procedure is initiated as a result of the lack of attention to any of the rights regulated in the data protection regulations. Therefore, in this case, only the facts related to the exercise of these rights will be analyzed and evaluated, excluding the rest of the issues raised by the parties.

Before delving into the substance of the matter, it should be noted that the data protection regulations governing this procedure and currently in force are the GDPR and the LOPDGDD, as indicated in Legal Basis I of this resolution, with the Organic Law 15/1999, of December 13, on the Protection of Personal Data and its implementing regulations being repealed, to the extent that they contradict,

oppose, or are incompatible with the provisions of the GDPR and the LOPDGDD.

In this case, and considering the provisions of the first two paragraphs of this Legal Basis, it has been established that the claimant, on April 25, 2023, requested access to their medical history via email to the address concursocorazoncontento@gmail.com. In the absence of a response, they sent an email to the respondent at the address ***EMAIL.1 requesting said medical history.

During the processing of this procedure, the respondent has indicated that "(...) as stated in the publication of the declaration of bankruptcy in the Official State Gazette, the communication address with the Bankruptcy Administration is ***EMAIL.2." However, the claimant has provided several emails received from the respondent from another address, so the respondent was aware of the claimant's request.

Although it is appropriate for such a request to be directed to the declared address for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 or to the central office, it is considered that the receipt of the request by any department or branch is a valid destination for it, in accordance with Article 12 of the LOPDGDD, which states: "The data controller shall be obliged to inform the affected party about the means available to exercise the rights that correspond to them. The means must be easily accessible to the affected party. The exercise of the right may not be denied solely on the grounds that the affected party has chosen another means."

The Guidelines 1/2022, in their version of March 28, 2023, from the European Data Protection Board, state that

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10/11

"54. It should be noted that the data controller is not obliged to respond to a request sent to a random or incorrect email address (or postal address) not provided directly by the data controller, nor to any communication channel that is clearly not intended to receive requests related to the rights of the data subject, if the data controller has provided an appropriate communication channel that can be used by the data subject."

In the case examined, the email used by the claimant was an email from the respondent, not being an address that can be classified as random or incorrect, nor one that has not been provided by the data controller, nor is it a channel that is clearly not intended to receive requests related to the rights of the data subjects. Furthermore, it is noted that the respondent interacted with the claimant from that email address.

Therefore, the right is considered validly exercised.

Consequently, it has been established that the claimant exercised their right of access against the respondent.

Regarding the access to the medical history requested, the respondent has stated that a series of physical documents appeared in the premises of the bankrupt entity, and to prevent them from being abandoned, a service from a specialized company was contracted where they have been deposited and safeguarded in that company's facilities.

Therefore, the respondent should attempt to locate the personal data requested by the claimant and send it to them.

As a consequence of all the above, it is appropriate to uphold the complaint submitted.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint filed by A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge CORAZÓN CONTENTO S.L. to send the claimant a certification addressing the requested right in accordance with the provisions of this resolution within ten working days following the notification of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as

very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to CORAZÓN CONTENTO S.L.

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28001 – Madrid

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11/11

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

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